

ORDER SHEET.
**LAHORE HIGH COURT,
MULTAN BENCH, MULTAN**

JUDICIAL DEPARTMENT

W. P. No. 7039 / 2015

Chief Executive Officer MEPCO and 1 other

Versus

Advisory Board Punjab and 5 others

JUDGMENT

Date of Hearing:	08.02.2022
Petitioner By:	Malik Haider Jamal Maitla, Advocate
Respondents By:	Malik Muhammad Husnain Rajwana, Advocate Mr. Khush Bakht Khan, Assistant Advocate General

ABID HUSSAIN CHATTHA, J: Brief facts of this case are that an electric connection was previously installed at the premises of Respondent No. 3 in the name of Sardar Oil Mills. Later, the premises was purchased and being run by Respondent No. 3. During an internal audit, an amount of Rs. 564,214/- was charged to the consumer under the head of fictitious adjustment and Rs. 123,606/- on account of short levy of 3 months fixed charges as per RCO Policy (total Rs. 687,820/-) vide Audit Note No. 39 dated 27.09.1997. The matter referred to 1996. Thereafter, the electricity connection of the previous owner was permanently disconnected due to non-payment of electricity arrears. However, Respondent No. 3 purchased the premises in auction on 28.11.2000 and applied for a new connection in the name of his son. While obtaining the new connection, a routine undertaking dated 03.12.2001 was also submitted to clear all the outstanding dues of MEPCO as per its decision. Accordingly, the new electricity connection was installed and energized on 11.01.2002. In the month of December, 2004, an amount of Rs. 687,820/- was debited to the account of Respondent No. 3 which was resisted by Respondent No. 3 who filed an application before the Electric Inspector. Vide Order dated

31.05.2005, Respondent No. 3 was exonerated. An Appeal filed by the Petitioners against the Order dated 31.05.2005 before the Advisory Board Punjab, Lahore was also dismissed vide Order dated 22.01.2015.

2. Learned counsel for the Petitioners submits that recovery of huge amount has been declared unlawful without any cogent reason. On the basis of undertaking submitted by Respondent No. 3, he was responsible to clear all the outstanding bills of previous months as the premises is now owned by Respondent No. 3. He also stated that Electric Inspector had no jurisdiction to pass the impugned Order.

3. The Electric Inspector taking cognizance on the application under Section 38 of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (the “**Act of 1997**”) read with Sections 24 & 26 of the Electricity Act, 1910 (the “**Act of 1910**”) for the settlement / determination of the dispute, undertook a detailed scrutiny of the record and held that Respondent No. 3 falls within the definition of a consumer being occupier of the premises and as such, is entitled to file the present application being an aggrieved and affected person after receiving the disputed bill from the Petitioners in terms of Section 2(c) of the Act of 1910 and Section 2(iv) of the Act of 1997, especially when notice to Respondent No. 3 under Section 24(2) of the Act of 1910 was issued by the Petitioners themselves. Moreover, on merits it was found after complete scrutiny of the relevant record that infact the audit objection itself was illegal and the demand raised was unjustified. As such, Respondent No. 3 could not be burdened with an amount so levelled.

4. In Appeal, the Petitioners also remained unsuccessful and the findings of the Electric Inspector were upheld. It was also held that Electric Inspector has jurisdiction to hear and decide the matter of debiting of any bill as a billing dispute, even though if the bill pertains to fixed charges, as charging of fixed charges falls within the term “billing”.

5. When confronted, learned counsel for the Petitioners relied upon case titled, “Water and Power Development Authority and others v. Messrs Kamal Food (Pvt.) Ltd. Okara and others” (**PLD 2012 Supreme Court 371**) to contend that an Electric Inspector had no jurisdiction to hear and

decide the matter of fix charges as meter was not involved in these charges. The contention is misplaced. Section 2(c) of the Act of 1910 defines the consumer as any person who is supplied with energy by a licensee, or who is the owner or occupier of the premises which are for the time being connected for the purposes of a supply of energy with the works of a licensee. Section 26(6) of the Act of 1910 clearly provides that where any dispute arises between a licensee and a consumer as to whether any meter, maximum demand indicator or other measuring apparatus is or is not correct, the matter shall be decided, upon the application of either party, by an Electric Inspector, within a period of ninety days. Respondent No. 3 was an occupier of the premises and was burdened with charges with respect to an audit objection with reference to electricity consumed through the meter of the previous owner. As such, the assumption of jurisdiction by the Electric Inspector was not unlawful.

6. Hence, the objection is frivolous and the impugned Orders have been passed in consonance with law. Kamal Food case referred above is distinguishable as it revolves around interpretation of Section 26(A) of the Act of 1910 regarding dishonest abstraction or consumption of energy. The instant case clearly falls within the ambit of Section 26(6) of the Act of 1910. Accordingly, this Petition is **dismissed**.

(Abid Hussain Chattha)
Judge

Abu Bakker